

Delaware County Metropolitan Planning Commission

Meeting August 6th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=TXqwYZdj6Rk
Publication Date	2026-08-07T11:43:26Z
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Delaware-Muncie Metropolitan Plan Commission: Meeting Summary Report

Meeting Date: August (Regular Monthly Meeting)

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The regular August meeting of the Delaware-Muncie Metropolitan Plan Commission was called to order by the presiding officer [00:09:41](#).
- **Attendance:**
 - **Members Present:** Steven Brand, Nate Carroll, Jerry Dishman, Larissa Hensley, Emily Kring, Owen Lecher, Jesse Landis, Ricky Sipe, and Chris Smith.
 - **Members Absent:** Tom Borchers, Richard Ivy, and Adam Leech.
 - **Quorum:** Established explicitly by the presiding officer [00:10:54](#).

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the recitation of the Pledge of Allegiance [00:09:57](#).

- **Approval of Minutes:**
 - **Deliberation:** The board considered the minutes from both June and July simultaneously.
 - **Action & Vote Disposition:** Approved via roll call vote with 7 yeases and 1 abstention (Jesse Landis abstained) [00:12:01](#).
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3. Substantive Business & Board Action

[00:13:39](#) Item 1: MPC 05-26Z (Old Business)

- **Item Identifier & Title:** [00:13:39](#) MPC 05-26Z: Application filed by Integrated Solutions LLC (Jurisdiction: County Commissioners).
- **Sponsor / Presenter:** Kathy Van Ausdall, Ashton Land Surveyor (representing applicant Brent Uttermark).
- **Deliberation Summary:** Continuation of a public hearing regarding a request to rezone a 2-acre parcel at 7600 South State Road 67 (Salem Township) from F (Farming) to BV (Variety Business). The applicant intends to build a pole barn/service bays for a plumbing business and store ambulances/construction materials, with future intentions for storage units. Board members questioned prior property neglect, vehicle registrations, and discrepancies between short-term plans and long-term ChatGPT-generated renderings. Legal counsel (Mr. Murphy) clarified that while a pole barn might be permissible under farming zoning, operating a business or storing business materials/vehicles there constitutes "business storage," which is prohibited without a rezone.
- **Item-Specific Public Input:**
 - **Matthew Shockley** [00:26:26](#) (Neighbor, 7571 S. State Rd 67): Spoke in support, noting prior property improvements, removal of a derelict mobile home/raccoon infestation, and support for 67 corridor development.
 - **Jason Hamby** [00:28:52](#) (Neighbor): Spoke in support, citing neighborhood property value increases and commercial development along Highway 67.
 - **Richard Burns** [00:30:31](#) (Neighbor, 7520 S. 67): Spoke in support, noting cleanup of the adjacent property and job creation.
 - **Charlotte Lawless** [00:31:44](#) (Neighbor, with husband Jim Lawless): Spoke in opposition, submitting photographs and raising concerns regarding un-mowed grass, junk vehicles/ambulances, ongoing unzoned business operations at an adjacent house, traffic accidents/fatalities on State Road 67, and lack of transparency regarding the applicant's true intentions.
- **Action & Vote Disposition:**
 - *First Motion:* A motion for a favorable recommendation failed on a roll call vote of 2-6 (Brand, Carroll, Dishman, Hensley, Lashay, and Landis voting "No") [00:52:51](#).

- *Second Motion:* A motion for an unfavorable recommendation was made and seconded **00:53:07. Passed 6-2** (Dishman, Hensley, Lashay, Landis, Sipe, and Brand voting "Yes"; Sipe and Smith voting "No") **00:54:00**. The unfavorable recommendation is forwarded to the County Commissioners for their August 17 meeting.

00:55:47 Item 2: MPC 07-26Z

- **Item Identifier & Title:** **00:55:47** MPC 07-26Z: Application filed by Ray Riggin and Sons Inc. (Jurisdiction: City Council).
 - **Sponsor / Presenter:** Kathy Van Ausdall, Ashton Land Surveyor.
 - **Deliberation Summary:** Request to change a split-zoned parcel (R-5 Residence Zone and BV Variety Business Zone) located at the northwest corner of East Riggin Road and North Old State Road 3 entirely to the BV (Variety Business) zone. The applicant noted that a split zone prevents development due to municipal corridor standards and depth restrictions. While a prospective buyer is under contract, no specific development plan has been finalized (potential options include retail, apartments, or a restaurant). Board members expressed frustration regarding voting on a rezone without a finalized plan, while legal counsel reminded the board that a rezoning votes on the allowable uses within the zone rather than a specific binding development proposal.
 - **Item-Specific Public Input:**
 - **Lisa Brand 00:23:16** (Spoke during general/support window): Spoke in favor of commercial growth and new development along a stagnant corridor.
 - **Zach Gadberry 00:23:13** (Resident): Spoke in opposition, citing negative impacts on surrounding residential property values, traffic congestion at the intersection, and loss of rural atmosphere.
 - **David Gadberry 00:26:21** (Resident, 1500 E. Riggin Rd): Spoke in opposition, raising concerns regarding noise pollution, light pollution, heavy rail traffic blockages, storm water drainage, and well-water contamination.
 - **Paul Gill 00:28:14** (Resident): Spoke in opposition, expressing concern over the lack of transparency regarding the intended use and preservation of a quiet residential neighborhood.
 - **Action & Vote Disposition:** A motion to grant a favorable recommendation was made and seconded **00:38:48. Passed 7-1** (Carroll, Dishman, Lashay, Sipe, Brand, and Smith voting "Yes"; Landis voting "No") **00:40:03**. The favorable recommendation is forwarded to the City Council for their September 14 meeting.
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4. Open Public Comment / Citizen Forum

Note: Public comments were integrated directly into the specific public hearings for Agenda Items 1 and 2 rather than held as a separate general forum.

5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **Permitting & Inspections:** Director Kyleen Swackhamer reported 130 permits issued in July (559 year-to-date), 955 inspections by Mr. Fouch year-to-date, 80 plan reviews by Ms. Merrell, and 76 total committee cases heard year-to-date.
 - **Unified Development Ordinance (UDO):** UDO revisions began in early July; the director encouraged public participation, stakeholder committee interest, and grant tracking for local matches.
 - **Data Centers:** The office is continuing to forward constituent emails regarding data centers to board members upon request.
 - **McKinley Overlay District:** Approved by City Council in July, subsequently vetoed by the acting mayor due to legal language concerns. The city and neighborhood group are working on revised language for a future resubmission to the commission.
 - **Adjournment:** The meeting concluded with staff and board members exchanging mutual commendations regarding workflow and inspection volumes [00:44:32](#).
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